

Court No. - 39

Case :- WRIT - C No. - 27349 of 2020

Petitioner :- Suraj Bhan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, learned Standing Counsel on behalf of respondents no. 1 and 2 and Shri Chandan Agarwal, learned counsel appearing on behalf of respondents no. 3 and 4.

The instant petition has been filed seeking following reliefs :

"(i) issue a writ of certiorari to quash the demand notices dated 17.11.2016, 18.11.2017 and 27.07.2020 (Annexure No. 3, 7 & 11) and undated recovery certificate (Annexure No. 10) issued by Respondent No. 4,

(ii) issue a writ, order or direction in the nature of writ of mandamus directing respondent No. 4 to restore electricity supply forthwith and further restrained the respondents concerned not to enforce recovery citation against the petitioner."

At the very outset, learned counsel for the petitioner submits that the revised demand notice in respect recovery of arrears of 70 months issued by respondent no. 4 is in violation of Section 56(2) and Clause 6.15 of the U.P. Electricity Supply Code, 2005 as the arrears which are sought to be recovered by the respondent is beyond the statutory period of two years, hence, not only the demand notices are illegal and bad in law but also the disconnection of power supply by issuing notice dated 12.03.2019. Aggrieved by the arbitrary conduct and action, a detailed representation had been moved by the petitioner on 14.08.2020 by registered post before respondent no. 4, which is Annexed as annexure-12 to the writ petition, but the same is still pending for consideration.

Learned counsel appearing on behalf of respondents no. 3 and 4 submits that in case some reasonable time may be allowed, the petitioner's representation shall be considered and decided in accordance with law within the time as may be fixed by this Court.

Having considered the submissions advanced by learned

counsel for the parties but without expressing any opinion on the merits of the case, this writ petition is **disposed of** with a direction to respondent no. 4 to consider and decide the said representation dated 14.08.2020 after giving an opportunity of hearing, by means of a reasoned and speaking order, strictly in accordance with law within a period of four weeks from the date of receipt of the copy of this order is filed before him. During the interregnum, no coercive action shall be taken against the petitioner by the respondents pursuant to the impugned recovery citation.

Order Date :- 18.1.2021

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